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CASE #	CASE NAME	HEARING NAME
CVRI2203939	J. VS COUNTY OF RIVERSIDE	DEFENDANT COUNTY OF RIVERSIDE'S MOTION FOR SUMMARY JUDGMENT/SUMMARY ADJUDICATION

Tentative Ruling:

EVIDENTIARY OBJECTIONS:

NIAC raises 12 objections to evidence submitted by the County in support of the motion: Objection Nos. 1 - 5 and 7, 9, AND 10: OVERRULED

Objection No. 6: SUSTAINED IN PART and OVERRULED IN PART. sustained as to a factual error regarding dates (characterization that the “Inconclusive” finding occurred on June 25, 2012; the correct date per the County’s record is June 25, 2013) but overruled concerning the admissibility of the records.

Objection Nos. 8, 11, 12: SUSTAINED IN PART and OVERRULED IN PART. Hearsay statements from McMorris are inadmissible, while Griffith’s findings are admissible as official records.

The Court OVERRULES all four of the County’s evidentiary objections to Plaintiff’s and NIAC’s evidence (Plaintiff’s deposition testimony, declaration, and allegations in the Complaint).

First Cause of Action — Negligence

The County moves for summary adjudication of the first cause of action for negligence on two independent grounds: (1) lack of notice, and (2) discretionary immunity under Gov. Code § 820.2. Plaintiff and NIAC respond that a triable issue exists on notice, that immunity does not apply to the operational failures alleged, and that the County independently breached mandatory statutory duties. Each ground is addressed in turn below.

Notice of Sexual Abuse

The County’s central argument is that it had no notice of sexual abuse because the contemporaneous social worker notes and CDSS records document investigations of physical abuse and sexual abuse by Burnside, another resident, but contain no mention of sexual abuse by Silva (foster parent) or McMorris (childcare worker at LPW). The County argues that Plaintiff’s 2026 deposition testimony and declaration, which was given more than a decade after the events, are “self-serving” and insufficient to defeat summary judgment when contradicted by the entire contemporaneous record.

Furthermore, the County contends that even if Plaintiff did report abuse, his admitted history of making false reports to be removed from placements creates reasonable grounds for social workers to approach any claims of abuse with skepticism.

The County's argument fails at the summary judgment stage. Plaintiff has offered his own sworn testimony that he reported Silva's sexual abuse to County social worker O'Shea on three specific occasions—at a park, by telephone, and at his elementary school—with specific words used and specific dismissive responses by O'Shea. (PAMF ¶¶ 3–6, 8, 9.) Plaintiff has likewise offered sworn testimony that he told O'Shea, in person and by phone, that McMorris (childcare worker) and Burnside (another resident) were “touching him sexually” and that O'Shea again refused to act. (*Id.* at ¶¶ 17–20.) This testimony is based on personal knowledge of events Plaintiff personally experienced and reports he personally made.

The County's reliance on the absence of contemporaneous documentation is precisely the kind of evidentiary conflict that summary judgment cannot resolve. In *Ahn v. Kumho Tire U.S.A., Inc.* (2014) 223 Cal.App.4th 133, the California Court of Appeal held that a party's own sworn testimony is not rendered inadmissible or insufficient merely because it is contradicted by other record evidence; where the record contains credibly conflicting evidence, the credibility determination belongs to the trier of fact. (*Id.* at 145–46; *see also Aguilar, supra*, 25 Cal.4th at 856 [“[T]he court may not weigh the plaintiff's evidence or inferences against the defendants' as though it were sitting as the trier of fact.”].) Whether the jury ultimately credits Plaintiff's account over the County's documentary record, or credits the County's contention that meticulously documented physical abuse investigations make it implausible that parallel sexual abuse reports went unrecorded, is essentially a jury question. A reasonable trier of fact could find Plaintiff's account credible (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1105), and that suffices to defeat summary judgment on the notice element.

Discretionary Immunity Under Gov. Code § 820.2

The County alternatively invokes discretionary immunity, arguing that its foster placement and monitoring decisions were policy level judgments immune under Gov. Code § 820.2. As stated in section 820.2, “a public employee is not liable for an injury caused by his or her act or omission where he or she is exercising discretion in the performance of his or her duties.” (Gov. Code § 820.2.) However, section 820.2 immunity is not coextensive with any exercise of judgment. (*Caldwell, supra*, 10 Cal.4th at 979 [internal citation omitted].) It is reserved for “basic policy decisions” that involve a conscious balancing of risks and advantages by an official with the authority to make such policy determinations. (*Id.* at 981; *see also Johnson v. State of Cal.* (1968) 69 Cal.2d 782, 793–96.) Ministerial or operational implementation of established policy is not immune. (*Caldwell, supra*, 10 Cal.4th at 981.)

Caldwell establishes that discretionary immunity applies only to decisions that require an official to weigh competing considerations, assess risks, and make policy-

level decisions. In that case, the California Supreme Court held that the discretionary immunity does not extend to actions wherein an employee, such as a social worker, simply implements established policies without engaging in the necessary deliberative process. (*Id.* at 986.) This means that if an employee's action amounts to a failure to investigate and follow procedures pertaining to child abuse reports, it may constitute an operational failure rather than a protected discretionary act.

On Plaintiff's version of the facts, which the Court must credit at this stage, O'Shea did not weigh competing risks and advantages before deciding not to investigate Plaintiff's reports. O'Shea summarily dismissed them with statements such as "I'm not going to move you just because I'm not getting my way" and "I'm not doing this again with you." (PAMF ¶¶ 9, 19.) That is a triable dispute over whether O'Shea's response was a considered policy judgment protected by section 820.2 or an operational failure to carry out an established investigative function. The County has not produced evidence that O'Shea (or any County policymaker) engaged in the deliberative risk balancing *Caldwell* requires. Discretionary immunity therefore does not support summary judgment on this record.

Mandatory Duties Under Gov. Code § 815.6

Under Gov. Code § 815.6, "[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Gov. Code § 815.6.) Application of section 815.6 requires a three-part showing: (1) an enactment imposes a mandatory, not discretionary, duty; (2) the enactment is designed to protect against the kind of injury the plaintiff suffered; and (3) breach of the mandatory duty was a proximate cause of the injury. (*Guzman v. Cnty. of Monterey* (2009) 46 Cal.4th 887, 898.)

Plaintiff independently argues that the County is directly liable under section 815.6 for breach of mandatory duties imposed by Pen. Code § 11166 (mandated reporting of suspected child abuse) and Wel. & Inst. Code § 328 (duty to investigate reports of abuse or neglect). NIAC also emphasizes that these duties include ensuring that foster children are supervised at all times by authorized adult caregivers. NIAC points to evidence that O'Shea discovered Plaintiff was sleeping overnight at Silva's adult group home during a two-week vacation yet failed to take any investigative action, which constitutes notice of unsafe conditions and duty breaches. (Aleagha Decl. ¶ 4(a).) Whether these statutes impose mandatory duties designed to protect against the injury Plaintiff suffered, and whether O'Shea's alleged inaction breached them, depends on the disputed factual question of whether Plaintiff made the reports he claims to have made. That dispute is triable and provides an additional, independent basis for denying summary adjudication on the first cause of action.

Foreseeability Theory

Plaintiff further contends that sexual abuse in foster care is generally foreseeable such that the County owed a protective duty even absent actual knowledge of a specific perpetrator's propensities. (Pl.'s Opp. 13:7–15:2, 16:11–17.) The Court need not resolve the scope of that broader duty because the actual notice dispute is itself sufficient to preclude summary judgment. Accordingly, the County is not entitled to summary adjudication on the first cause of action for negligence.

Fourth Cause of Action — Negligent Hiring, Retention, and/or Supervision

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836–37.) In a negligent hiring, retention, or supervision case, a duty arises only where there is “the existence of an employment relationship.” (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1142.)

Here, the County moves for summary adjudication of the fourth cause of action for negligent hiring, retention, and/or supervision on the ground that the County had no employment relationship with the alleged perpetrators—Silva was a foster parent licensed by Community Care Licensing, not by the County and McMorris was employed by LPW, not by the County. That argument, standing alone, does not dispose of the claim as framed by Plaintiff.

Plaintiff's theory is not that the County negligently hired or supervised Silva (foster parent) or McMorris (childcare worker at LPW). It is that the County negligently supervised its own social worker, O'Shea, whose alleged failure to investigate and respond to Plaintiff's reports was the operative negligent act. There is no dispute that O'Shea was a County employee. Whether the County adequately trained, supervised, and retained O'Shea in her handling of foster child abuse reports is a triable question that turns on the same underlying factual dispute over what Plaintiff reported and how O'Shea responded. Because that dispute cannot be resolved on this record, summary adjudication of the fourth cause of action is likewise unwarranted.

Accordingly, the County is not entitled to summary adjudication on the fourth cause of action for negligent hiring, retention, and/or supervision.

For the foregoing reasons, the Court DENIES the motion because the County has not met its burden of establishing that there is no triable issue of material fact. Genuine disputes of material fact exist on the question of whether Plaintiff reported sexual abuse to O'Shea, the County social worker, and, if so, whether O'Shea's response constituted a breach of the County's duty of care.